

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

MARINE TRANSPORT LOGISTICS, INC. v. CMA CGM (AMERICA) LLC

**RESPONDENT’S RESPONSE TO COMPLAINANT’S MOTION FOR LEAVE TO FILE
AN AMENDED COMPLAINT AND REPLY TO COMPLAINANT’S RESPONSE TO
RESPONDENT’S MOTION TO DISMISS**

On October 11, 2022, Complainant Marine Transport Logistics, Inc. (“MTL” or “Complainant”) filed a combined (i) Response to the Motion to Dismiss of Respondent CMA CGM (America) LLC (“CCA”) and (ii) Motion for Leave to File an Amended Complaint. Because Complainant has shoehorned two different filings into one document, Respondent follows the same approach. And because resolution of the Motion for Leave to Amend will substantially affect the Motion to Dismiss (as it relates to CCA), Respondent addresses the proposed Amended Complaint first.

1. Motion For Leave to Amend.

Although MTL advised CCA that it intended to file a motion to amend, it never asked CCA whether it consented to or otherwise had a position on the Motion to Amend. Such failure to confer in a meaningful manner contravenes the requirements of the Commission’s Rules of Procedure regarding non-dispositive motions (Commission Rule 71(a), 46 CFR 502.71(a)). Although this flouting of the Commission’s requirements for non-dispositive motions would itself justify denial of the Motion for Leave to File an Amended Complaint, CCA has determined not to object to the request if certain conditions are agreed to by Complainant or ordered by the Presiding Officer:

- First, the Amended Complaint must be revised to delete CCA as a respondent. As demonstrated in the Motion to Dismiss, ***CCA is not an ocean common carrier***. It does

not issue bills of lading or otherwise take responsibility for the transportation – that is done by CMA CGM S.A. Likewise, CCA does not hold out in its own name to provide transportation in the U.S.-foreign trades – that is again done by CMA CGM S.A., with CCA acting only as an agent.¹ Finally, CCA cannot be an ocean common carrier because it does not operate any vessels in the U.S.-foreign trades. The FMC itself recognizes that CMA CGM S.A., and not CCA, is an ocean common carrier. Further, substituting CMA CGM S.A. for CCA would cause no hardship to Complainant because any appropriate discovery or relief may be had against CMA CGM S.A.

- Second, the Amended Complaint ***must be filed in the same manner as an original pleading*** (not in the redline as attached to the Motion for Leave to File). This is in any event required by Commission Rule 66 (46 CFR 502.66).
- Third, the Amended Complaint ***must be verified***, as required by Commission Rule 66 (46 CFR 502.66(c)).
- Fourth, the Amended Complaint ***must be timely filed by a date to be determined by the Presiding Officer***. This is simply a commonsense suggestion to keep the proceeding on a timely track.
- Fifth, the Amended Complaint ***must be served on CMA CGM S.A.***, as required by Commission Rule 113(a), 46 CFR 502.113(a).

¹ Just as the Commission lacks authority to regulate the agents of NVOCCs, it lacks authority over agents of VOCCs and other non-jurisdictional entities. See, *Landstar Express Am., Inc. v. Fed. Mar. Comm’n*, 569 F.3d 493 (DC Cir.2009), 2009 U.S. App. LEXIS 13940; see also, *Austasia Intermodal Lines, Ltd. v. Fed. Mar. Comm’n*, 580 F.2d 642 (DC Cir. 1978), 1978 U.S. App. LEXIS 11359.

- Sixth, the ***time for Respondent CMA CGM S.A. to respond to the Amended Complaint (by Answer or Motion) must restart*** as of the date the Amended Complaint is served.

This is required in any event by Commission Rule 66, 46 CFR 502.66.

2. Complainants' Response to the Motion to Dismiss.

The conditional grant of Complainant's Motion for Leave, under the terms stated above, would effectively moot the current motion to dismiss as to CCA and leave it for CMA CGM S.A. This does not mean, however, that the Amended Complaint resolves all of the issues raised by the Motion to Dismiss – it doesn't. Rather, these issues would be addressed, if at all, in the context of the Amended Complaint – *e.g.*, through a new motion to dismiss the Amended Complaint. There is thus no need to address at length Complainant's Response to the pending motion about jurisdiction over CCA. We do, however, wish to respond briefly to a couple of Complainant's mistakes.

First, Complainant objects, we assume facetiously, to Respondent's use of the short-form CCA to represent CMA CGM (America) LLC. That term, however, is defined in full in the very first sentence of the Motion to Dismiss. Respondent routinely uses the designation CCA as a way to distinguish itself from CMA CGM S.A., and we refuse to believe that Complainant could not figure this out.

Second, and more disturbingly,² Complainant claims that CCA can be considered an ocean common carrier because its name appears on an invoice sent to MTL. Complainant struthiously ignores, however, that the very invoice it cites makes clear that CCA is only acting

² We assume for present purposes that Complainant's misrepresentation is not a matter of malice, but rather a failure to exercise due care.

as an agent for CMA CGM S.A., the actual ocean common carrier. In this respect, the invoice (Complainant's Exhibit B) expressly states that the invoice is sent:

“(C)For and on behalf of CMA CGM
4 QUAI D'ARENC
13002 MARSEILLE-FRANCE
FR72562024422”

Thus, the invoice is actually further evidence that CCA is not an ocean common carrier, but rather an agent for CMA CGM S.A.

In sum, Respondent does not object to the grant, specifically conditioned on the imposition of the requirements set forth above, of Complainant's Motion for Leave to File an Amended Complaint. Respondent further recognizes that the grant of that motion, if conditioned on deletion of CCA, would moot Respondent's pending Motion to Dismiss as it related to jurisdiction. Other issues, such as the inadequate allegation of a practice, would be left for subsequent resolution after the Amended Complaint is filed.

DATED: October 18, 2022

Respectfully submitted,

s/ *Rebecca A. Fenneman*

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ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I certify that on the 18th day of October, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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